

2014 SCC OnLine All 11279

(BEFORE AMRESHWAR PRATAP SAHI AND VIVEK KUMAR BIRLA, JJ.)

Meva Ram Petitioner

v.

State of U.P. & 2 Others Respondents

Counsel for Petitioner:- Arun K. Bhatt

Counsel for Respondent:- C.S.C., Baleshwar Chaturvedi, P.K. Pandey

Writ - C No. - 35878 of 2014

Decided on July 15, 2014

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Vivek Kumar Birla, J.

Heard Sri Arun K. Bhatt, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the Power Corporation, and Sri Pankaj Kumar Pandey for the caveator.

This matter arises out of a dispute of an electricity connection of a tubewell between the petitioner who is the uncle of the caveator Sri Ganga Dayal. He is represented before this Court through a caveat filed by Sri Pankaj Kumar Pandey. In view of the nature of the order that is being passed, upon agreement of the learned counsel for the parties, the Court directs the petitioner to implead Sri Ganga Dayal as respondent no. 4 in the writ petition during the course of the day.

The said respondent, in the opinion of the Court, is entitled to claim a right for hearing under Chapter 22 Rule 5A of the Allahabad High Court Rules, 1952. To this Sri Baleshwar Chaturvedi, learned counsel for the Power Corporation has no objection.

The newly impleaded respondent no. 4 Ganga Dayal approached this Court by filing Writ Petition No. 26100 of 2014 and the following order was passed on 9.5.2014:-

"Hon'ble Sanjay Misra, J.

Hon'ble Anant Kumar, J.

We have heard Sri Navin Kumar Srivastava, learned counsel for the petitioner, learned standing counsel for the State-respondent and Sri Sravan Kumar Tripathi, learned counsel for the respondents no. 2 and 3 which are the Dakshinanchal Vidyut Vitran Nigam Limited, Firozabad.

The petitioner prays that the respondent nos. 2 and 3 be directed to correct the electricity connection regarding tube well to be in the name of the petitioner being Connection No. 2202-003850. He refers to Annexures-4 and 5 to the writ petition and states that he has filed the application in prescribed form as far back as on 16.11.2007 but no action has been taken by the respondents hence, this writ petition. He further states that the original connection was taken in the name of Ram Das and Meva Ram and after death of Ram Das, Meva Ram has moved an application with affidavit surrendering his rights over the same and requesting that the petitioner's name may be recorded against the said electricity connection. He further states that arrears were raised against the said electricity connection and the same has been deposited by the receipts annexed along with this writ petition on the basis of one time settlement and as such there are no dues left against the said electricity connection.

Learned counsel for the respondents has submitted that in case the averment made in the writ petition filed by the petitioner regarding clearance of all the arrears against electricity connection are correct only then the mutation of name in the connection for transfer of the connection can be done under the provisions of Clause 4.44 of the U.P. Electricity Supply Code, 2005 and upon the petitioner completing the requisite formalities. He further states that the competent authority under Clause 4.44 of the Code is the Executive Engineer of the Division who has not been made party in this writ petition.

We have considered the submissions of learned counsel for the parties and perused the record.

The petitioner claims transfer of the connection in his name by mutating his name thereupon.

Without going into correctness of the averments made in the writ petition, we provide that in case the petitioner has already applied in the prescribed form in accordance with the provisions of Clause 4.44 of the Code, the competent authority should consider the prayer of the petitioner in accordance with law within three weeks from the date a certified copy of this order is produced by the petitioner before the competent authority. In case the petitioner has not applied in prescribed form under Clause 4.44 of the Code, he may complete the formalities before the competent authorities and thereafter his application be considered in accordance with law.

The writ petition is accordingly finally disposed of with no order as to costs.

Order Date:- 9.5.2014”

The respondent no. 4 was not being favoured with any order in respect of the said connection as prayed for by him as such he opted to file a Contempt Application No. 3742 of 2014 in which notices have been issued and the next date fixed is 18.8.2014. This order has been produced before the Court by Sri Baleshwar Chaturvedi.

Thus, all the parties to the litigation are well aware of the status of dispute in the present writ petition and in such circumstances in view of the agreed position it is not necessary to issue any direction for further exchange of affidavits in order to finally resolve the dispute.

During the course of hearing, on instructions from his client, Sri Rathore has given a statement to the effect that the respondent no. 4 Ganga Dayal is prepared to undertake all liabilities in respect of the electricity connection in dispute of the tubewell in question and that he will pay all dues irrespective of any dispute pending.

The petitioner's counsel Sri Bhatt submits that the petitioner should not be saddled with any such liability and it is for this reason that he has applied for the disconnection of the said electricity connection which was standing in the name of Meva Ram, the petitioner, and his deceased brother Ramdas father of Ganga Dayal.

It appears that it is on account of the death of Ram Das somewhere in 2006 that this dispute between the petitioner, who is uncle and the respondent no. 4, who is his nephew, has arisen. The petitioner's counsel has made a clear statement that the petitioner has no concern with the tubewell and if the respondent no. 4 is giving an undertaking to shoulder all liabilities of the said electricity connection and its dues then he has no objection to the same being transferred in the name of respondent no. 4.

In view of this agreed position, Sri Baleshwar Chaturvedi for the Power Corporation contends that if a direction is issued to the Executive Engineer to pass an appropriate order for transfer of the connection, as claimed by the respondent no. 4 in his favour, the same will end the dispute between the petitioner and the respondent no. 4 provided the respondent no. 4 clears all the dues of the Electricity Department.

This position having been arrived at before the Court, with the consent of learned counsel for the parties, this writ petition is disposed of with a direction that the respondent no. 2 shall proceed to now transfer the connection in favour of the respondent no. 4 Ganga Dayal after realizing the entire dues to which the petitioner Meva Ram will have no

objection. The formalities be completed within six weeks' from the date of production of a certified copy of this order before him.

It has also been agreed between the parties that the litigation in relation to this dispute now comes to an end so far as the transfer of connection is concerned. Consequently, we in the exercise of our inherent powers under Article 215 of the Constitution of India, on the statement made by the learned counsel, also discharge the notices in Contempt Application No. 3742 of 2014.

Let a copy of this order be also placed on the file of the aforesaid contempt application which shall be consigned to records.

With the said observations and directions, this petition is disposed of. The respondent-Executive Engineer after passing the order will forthwith restore the electricity connection and provide all facilities relating to the restoration of the line in respect of the same as learned counsel for the respondent no. 4 is right in his submission that the paddy crops have not been sown as yet and farmers are currently facing a drought situation.

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